

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3907

By: Hefner of the House

and

Rader of the Senate

8
9 COMMITTEE SUBSTITUTE

10 An Act relating to vulnerable juveniles and adults;
11 defining terms; allowing the Office of Juvenile
12 Affairs, county juvenile detention centers, and the
13 Department of Human Services to hire temporary staff
14 members from certain agencies for a certain amount of
15 time; providing for codification; and providing an
16 effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 2-7-301.1 of Title 10A, unless
20 there is created a duplication in numbering, reads as follows:

21 A. As used in this section:

22 1. "Contracting organization" means an organization which
23 operates under a written agreement signed between the Office of
24 Juvenile Affairs, Oklahoma Health Care Authority, or Department of
25 Human Services and an organization that provides direct care
26 workers, rather than full-time direct hire staff, to post-

1 adjudication treatment facilities, residential care facilities
2 including intermediate care facilities for individuals with
3 intellectual disabilities (ICF-IID), daily living supports (DLS)
4 home or group homes;

5 2. "Temporary agency" means staffing agencies, part-time
6 staffing agencies, recruiting agencies, or other organizations that
7 provide employees on a temporary basis; and

8 3. "Vulnerable person" means any person under the age of
9 eighteen (18) or a person having an intellectual disability.

10 B. A group home, intermediate care facilities for individuals
11 with intellectual disabilities, daily living supports (DLS) home,
12 post-adjudication treatment facility, or any other facility holding
13 youth operated by the Office of Juvenile Affairs, Department of
14 Human Services, or contracted with the Oklahoma Health Care
15 Authority, may utilize, employ, or enter into an agreement to staff
16 facilities using organizations known as temporary agencies or
17 contracting organizations who employ full- or part-time team members
18 on behalf of the Office of Juvenile Affairs, Department of Human
19 Services, or the Oklahoma Health Care Authority on a temporary or
20 contract basis for no more than two (2) months for any single
21 position to be covered by a temporary staff member within a twelve-
22 month period and the agency utilizing the temporary staff member
23 shall be actively trying to fill the permanent position.

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 458.1 of Title 19, unless there
3 is created a duplication in numbering, reads as follows:

4 A. As used in this section:

5 1. "Contracting organization" means an organization which
6 operates under a written agreement signed between the Office of
7 Juvenile Affairs and an organization that provided contract workers,
8 rather than full-time direct hire staff, to post-adjudication
9 treatment facilities; and

10 2. "Temporary agency" means staffing agencies, part-time
11 staffing agencies, recruiting agencies, or other organizations that
12 provide employees on a temporary basis.

13 B. County juvenile detention centers may utilize, employ, or
14 enter into an agreement to staff detention facilities using
15 organizations known as temporary agencies or contracting
16 organizations who employ full- or part-time team members to the
17 county on a contract basis for no more than two (2) months for any
18 single position to be covered by a temporary staff member within a
19 twelve-month period and the agency utilizing the temporary staff
20 member shall be actively trying to fill the permanent position.

21 SECTION 3. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 530.9 of Title 56, unless there
23 is created a duplication in numbering, reads as follows:

24 A. As used in this section:

1 1. "Contracting organization" means an organization which
2 operates under a written agreement signed between the Office of
3 Juvenile Affairs and an organization that provided contract workers,
4 rather than full-time direct hire staff, to post-adjudication
5 treatment facilities; and

6 2. "Temporary agency" means staffing agencies, part-time
7 staffing agencies, recruiting agencies, or other organizations that
8 provide employees on a temporary basis.

9 B. An adult companion home certified by the Department of Human
10 Services may utilize, employ, or enter into an agreement to staff
11 facilities using organizations known as temporary agencies or
12 contracting organizations who employ full- or part-time team members
13 to the Department on a contract basis for no more than two (2)
14 months for any single position to be covered by a temporary staff
15 member within a twelve-month period and the agency utilizing the
16 temporary staff member shall be actively trying to fill the
17 permanent position.

18 SECTION 4. This act shall become effective November 1, 2026.

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20 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
21 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended.
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